

SENATE BILL NO. 350

INTRODUCED BY M. REGIER

A BILL FOR AN ACT ENTITLED: "AN ACT REVISING EDUCATION LAWS RELATED TO
EXTRACURRICULAR PARTICIPATION; ALLOWING SCHOOL DISTRICTS OR ATHLETIC ORGANIZATIONS
TO RESTRICT EXTRACURRICULAR PARTICIPATION OF HOME SCHOOL STUDENTS WHO ARE NOT
CITIZENS OF THE UNITED STATES OR RESIDENTS OF MONTANA; AMENDING SECTION 20-5-112,
MCA; AND PROVIDING AN IMMEDIATE EFFECTIVE DATE."

BE IT ENACTED BY THE LEGISLATURE OF THE STATE OF MONTANA:

Section 1. Section 20-5-112, MCA, is amended to read:

"20-5-112. Participation in extracurricular activities. (1) (a) A school district or an athletic
association, conference, or organization with authority over interscholastic sports may not prohibit or restrict the
ability of a student attending a nonpublic or home school meeting the requirements of 20-5-109 from
participating in extracurricular activities at a school in the student's resident school district solely on the
student's enrollment at the public school or on the number of hours the student physically attends the public
school.

(b) Subsection (1)(a) does not apply to a student attending a home school who is not:

(i) a citizen of the United States; OR

(ii) A RESIDENT OF THE STATE OF MONTANA, AS DETERMINED UNDER THE PROVISIONS OF 1-1-215.

(2) Except as provided in subsections (1) and (3), a student attending a nonpublic or home school
who participates in extracurricular activities at a public school is subject to:

(a) the same standards for participation as those required of full-time students enrolled in the
school;

(b) the same rules of any interscholastic organization of which the school of participation is a
member.

(3) (a) The academic eligibility for extracurricular participation for a student attending a nonpublic

1 school must be attested by the head administrator of the nonpublic school.
2 (b) The academic eligibility for extracurricular participation for a student attending a home school
3 must be attested in writing by the educator providing the student instruction with verification by the school
4 principal. The verification may not include any form of student assessment."

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6 NEW SECTION. **Section 2. Effective date.** [This act] is effective on passage and approval.

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